

Mallappa S/O.Channabasappa Katavi vs Savita W/O.Mallappa Katavi, on 14 February, 2011

Bench: N.K.Patil, A.N.Venugopala Gowda

sail

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is Miscellaneous First Appeal is file
19(41) of the Family Courts Act :
dated 22.09.2010 passed in M.C. No. 133/ 2009 on the efile of
the Presiding Officer, Family Court, - Bangalore, dismissed the
petition filed under Section 13(b) of Hindu Marriage
Act.

this day. ALN. Venugopala Gowda J., delivered the judgment

Petitioner had filed the petition under Section 13(b) (a)

and (b) of Hindu Marriage Act, 1955 against the respondent

for passing a decree of divorce, the petitioner having been
dismissed by the Family Court, "this appeal has been

preferred.

The respondent submitted that

respondent-wife is willing for a decree of divorce, being

separated,

view the submission made by the learned

Counsel for respondent, the learned counsel appearing for

that the appeal may be disposed of, as

by reserving liberty to the petitioner to file a

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dismissed petition under Section 13(b) of Family Court.

Therefore, in view of the facts and circumstances, the appeal is allowed.

i Le appeal Hberty to the parlice tov obtain rehet "Hindu Marriage Act and seek submission madé
-by learned, stands 'dismissed. as Inder Section 128 of Hindu Marriage Act, 1955 by filing a petition
in the Family Courtat Belgaum - Ordered accordingly... JUDGE ' = Sd/-

JUDGE